TEST Credit Provider (Pty) Ltd

NCR NCRCP00000
1 Test Road
Johannesburg
2000

NCA INSTALMENT SALE AGREEMENT

Reference AF-NCA-SAMPLE-1 · prepared 31 December 2026
DRAFT legal wording — not for execution

PARTIES AND ASSET

Credit provider	TEST Credit Provider (Pty) Ltd
Consumer	TEST Sole Proprietor
Identity / registration	0000000000000
Address	2 Synthetic Street Johannesburg 2001
Asset	2026 TEST TLB 4x4
Serial / VIN	TESTSERIAL0001

FINANCIAL TERMS

Principal debt	R 1,000,000.00
Annual interest	Prime plus 1.25%, linked to Prime (Prime of 10.50% effective 1 September 2026): 11.75% a year (nominal)
Instalment	R 28,493.99
Residual / balloon	R 200,000.00
Initiation fee	R 1,207.50
Monthly service fee	R 60.00
Total cost of credit	R 1,226,991.16
Total repayable	R 1,226,991.16

TERMS AND CONDITIONS

1 Interpretation

1.1 In this agreement "the Act" means the National Credit Act 34 of 2005 and "the Regulations" means the National Credit Regulations made under it; "the Credit Provider" means TEST Credit Provider (Pty) Ltd, registered credit provider NCRCP00000; "the Consumer" means TEST Sole Proprietor; "the Goods" means the 2026 TEST TLB 4x4, serial or VIN number TESTSERIAL0001, with its parts and accessories and anything fitted to it in replacement; "the Quotation" means the pre-agreement statement and quotation the Credit Provider gave the Consumer for this agreement under section 92 of the Act; "the Repayment Schedule" means the schedule of instalments that accompanies the Quotation and this agreement; and "business day" is counted as section 2(5) of the Act provides.

1.2 This agreement is an instalment agreement as defined in section 1 of the Act and a large agreement under section 9 of the Act. If any provision of this agreement conflicts with the Act or the Regulations, the Act and the Regulations prevail.

2 Delivery, possession, risk and ownership

2.1 The Credit Provider sells the Goods to the Consumer on the terms of this agreement. The Consumer takes possession of the Goods when they are delivered and signs a delivery note when it receives them.

2.2 Ownership of the Goods remains with the Credit Provider until the Consumer has paid every amount due under this agreement, including any residual amount. Ownership then passes to the Consumer without any further payment or document being required of the Consumer.

2.3 Risk of loss of, damage to or destruction of the Goods passes to the Consumer on delivery. Loss or damage does not end the Consumer's obligations under this agreement; insurance proceeds are dealt with as clause 4.4 provides.

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2.4 Until ownership passes, the Consumer must: (a) keep the Goods in the Consumer's possession and under the Consumer's control in the Republic of South Africa; (b) use them with reasonable care, for their intended purpose and in accordance with the law and the manufacturer's instructions; (c) keep them in good repair and working order at the Consumer's own cost, fair wear and tear excepted; (d) not sell, let, lend, pledge or otherwise encumber or dispose of the Goods, or part with possession of them, without the Credit Provider's prior written consent; (e) not remove or alter any serial number, VIN or other identifying mark; (f) tell the Credit Provider in writing within 5 business days of any change in the place where the Goods are normally kept and of any loss of, damage to, theft or attachment of, or third-party claim to, the Goods; and (g) make the Goods available for inspection at a reasonable time and place arranged with the Consumer in advance.

2.5 If the Goods must be registered under the National Road Traffic Act 93 of 1996, the Credit Provider is recorded as titleholder and the Consumer as owner, and the Consumer must keep them licensed and roadworthy at the Consumer's own cost.

2.6 Nothing in this agreement entitles the Credit Provider, or anyone acting for it, to enter the Consumer's premises or to take possession of the Goods without the Consumer's consent given at the time or an order of court.

3 Payments, interest and statutory charges

3.1 The Consumer must pay 36 monthly instalments in the amounts and on the dates in the Repayment Schedule, the first on 31 January 2027 and the last on 31 December 2029. The base instalment is R 28,493.99. The last instalment includes the residual (balloon) amount of R 200,000.00. Each instalment includes interest, the monthly service fee.

3.2 Payments are made in full on their due dates, by debit order or electronic transfer into the account the Credit Provider designates in writing, quoting reference AF-NCA-SAMPLE-1.

3.3 Interest is charged on the outstanding principal debt at Prime plus 1.25%, linked to Prime (Prime of 10.50% effective 1 September 2026): 11.75% a year (nominal). It accrues daily on the reducing balance, on the actual number of days over a 365-day year, and is payable with each instalment. The rate is variable: it is linked to Prime, and when Prime changes the rate changes by the same amount from the date the change takes effect. The Credit Provider then recalculates the instalment so that the agreement still ends on 31 December 2029 and the residual amount does not change, and gives the Consumer written notice of the new rate and instalment as section 104 of the Act requires. The rate will never exceed the maximum prescribed under section 105 of the Act for this type of agreement: a change that would take it above that maximum is not applied.

3.4 The Consumer must pay an initiation fee of R 1,207.50, included in the amounts in the Repayment Schedule, and a monthly service fee of R 60.00. Neither exceeds the maximum prescribed under section 105 of the Act. The Credit Provider will not charge any fee, charge or other amount that section 101 of the Act does not permit or that section 100 of the Act prohibits.

3.5 If an amount is not paid when due, interest continues to run on the overdue principal at the rate in clause 3.3, and not at a higher rate, from the day after the due date until it is paid. The Credit Provider may also charge the default administration charges and collection costs that section 101(1)(f) and (g) of the Act and the Regulations permit. Under section 103(5) of the Act, the interest, fees and charges that accrue while the Consumer is in default will together not exceed the unpaid balance of the principal debt when the default occurred.

3.6 Each payment is applied in the order section 126(3) of the Act requires: first to interest due, then to fees and charges due, and then to the principal debt.

3.7 The cash price of the Goods includes value-added tax. The Credit Provider will issue the tax invoice the Value-Added Tax Act 89 of 1991 requires for the supply of the Goods.

4 Insurance and credit-life election

4.1 From delivery until ownership passes, the Consumer must keep the Goods comprehensively insured against loss, theft and damage for not more than their replacement value, with the Credit Provider's interest noted on the policy. The Consumer may choose the insurer and the policy: as section 106 of the Act provides, the Credit Provider may not require the Consumer to insure with a particular insurer. The Consumer must give the Credit Provider proof of cover when asked.

4.2 If the Consumer does not maintain that insurance, the Credit Provider may, after giving the Consumer written notice and 10 business days to provide proof of cover, arrange cover for not more than the replacement value of the Goods, as section 106 of the Act permits, and the Consumer must pay the premium. The Credit Provider will tell the Consumer the insurer, the cover and the premium in writing.

4.3 No credit-life premium is payable under this agreement.

4.4 Insurance proceeds paid for loss of or damage to the Goods are paid to the Credit Provider to the extent of the amount owing under this agreement, and are applied to repair or replace the Goods or to reduce the amount owing, as the Consumer and the Credit Provider agree. Any balance is paid to the Consumer.

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5 Consumer statements and early settlement

5.1 The Credit Provider will deliver a statement of account to the Consumer at least once every three months, as section 108 of the Act requires, by the method of delivery the Consumer chose under section 65 of the Act. The Consumer may also ask for a statement at any time, and current statements are available in the client portal.

5.2 The Consumer may settle this agreement at any time, with or without advance notice, by paying the settlement amount under section 125 of the Act: the unpaid balance of the principal debt, including any residual amount, and the unpaid interest, fees and charges payable up to the settlement date. Because this is a large agreement, the Credit Provider may also charge an early-termination charge, which will not exceed what section 125(3) of the Act permits (no more than three months' interest).

5.3 On request, the Credit Provider will give the Consumer a written settlement quotation. When the settlement amount is paid, this agreement ends and ownership of the Goods passes to the Consumer as clause 2.2 provides.

6 Default, enforcement and statutory notices

6.1 The Consumer is in default if any amount payable under this agreement is not paid in full on its due date.

6.2 If the Consumer is in default, the Credit Provider will not begin legal proceedings to enforce this agreement before (a) it has delivered to the Consumer the notice that section 129(1)(a) of the Act requires, in the manner section 129 requires; and (b) the periods and other requirements of section 130 of the Act have been met, including that the Consumer has been in default for at least 20 business days and at least 10 business days have passed since that notice was delivered. The content of that notice is prescribed by the Act and is not repeated here.

6.3 The Credit Provider may terminate this agreement before the end of its term only as section 123 of the Act allows: when the Consumer is in default and the Credit Provider has followed the procedure in sections 129 and 130 of the Act.

6.4 If a court orders the attachment of the Goods, the Credit Provider will deal with them as section 131 of the Act provides: it will value them, give the Consumer notice of their estimated value, sell them for the best price reasonably obtainable and account to the Consumer for the proceeds, as sections 127(2) to (9) and 128 of the Act require.

6.5 At any time before the Credit Provider has cancelled this agreement, the Consumer may remedy a default by paying all overdue amounts, together with the default charges the Act permits and the reasonable costs of enforcing the agreement up to the time the default is remedied, as section 129(3) of the Act provides. Section 129(4) of the Act sets out when this right is no longer available, including after the Goods have been sold under an attachment order or after a surrender under clause 7. When the default is remedied the Consumer may resume possession of Goods the Credit Provider has taken back.

6.6 The Credit Provider may recover the costs of collection and enforcement only to the extent section 101(1)(g) of the Act, the Regulations and any order of court permit.

6.7 If the Consumer applies for debt review under section 86 of the Act, the Credit Provider may enforce this agreement only as sections 86 and 88 of the Act allow.

7 Voluntary surrender

7.1 The Consumer may terminate this agreement at any time by giving the Credit Provider written notice under section 127(1) of the Act, in writing or through the client portal. If the Goods are already in the Credit Provider's possession, the Consumer may in that notice require the Credit Provider to sell them, as section 127(1)(b)(i) of the Act provides. If the Goods are in the Consumer's possession, the Consumer must return them to the Credit Provider's place of business during ordinary business hours within 5 business days after the notice, or at another time and place the Credit Provider agrees to in writing; if they are not, the Consumer must tell the Credit Provider where they are.

7.2 Within 10 business days after the later of receiving the notice and receiving the Goods, the Credit Provider will give the Consumer written notice of the estimated value of the Goods, as section 127(2) of the Act requires.

7.3 Within 10 business days after receiving that notice, the Consumer may unconditionally withdraw the termination notice and resume possession of the Goods, unless the Consumer is in default under this agreement, as section 127(3) of the Act provides.

7.4 If the Consumer does not withdraw the notice, the Credit Provider must sell the Goods as soon as practicable for the best price reasonably obtainable, credit or debit the Consumer's account with the proceeds less the reasonable costs of the sale, and give the Consumer written notice of the settlement value immediately before the sale, the gross and net proceeds and the amount credited or debited, as section 127(4) and (5) of the Act require.

7.5 If the proceeds credited exceed the settlement value, the Credit Provider will pay the difference to the Consumer. If they are less, the Credit Provider may demand payment of the balance in that notice; if the Consumer does not pay it within 10 business days after receiving the demand, the Credit Provider may begin legal proceedings for it. Sections 127(6) to (9) and 128 of the Act apply, including the Consumer's right to apply to the National Consumer Tribunal to review the sale.

8 Cooling-off right

8.1 If this agreement was signed at a place other than the Credit Provider's registered business premises, the Consumer may rescind it without giving a reason, by delivering written notice to the Credit Provider within 5 business days after the date on

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which the Consumer signed it, as section 121 of the Act provides.

8.2 On rescission each party must return what it received under this agreement within the time and in the manner section 121(3) of the Act requires. The Credit Provider will not charge any penalty or fee for the rescission beyond what section 121 of the Act permits.

9 Credit information, debt review and complaints

9.1 The Credit Provider will report information about this agreement and the Consumer's payment record to registered credit bureaux as the Act and the Regulations require. Before it reports adverse information, it will give the Consumer at least 20 business days' written notice, as the Regulations require.

9.2 If the Consumer is or expects to become over-indebted, the Consumer may apply to a registered debt counsellor for debt review under section 86 of the Act.

9.3 The Consumer may lodge a complaint about this agreement with the Credit Provider at the address in clause 10. If the complaint is not resolved, the Consumer may refer it to an alternative dispute resolution agent, a consumer court or an ombud with jurisdiction, to the National Credit Regulator, or to the National Consumer Tribunal, as Chapter 7 of the Act provides.

9.4 The Credit Provider processes the Consumer's personal information under the Protection of Personal Information Act 4 of 2013 to assess, conclude, administer and enforce this agreement and as the law requires. The Consumer may ask to see and correct that information as that Act provides.

10 Addresses and notices

10.1 For section 96 of the Act, the Consumer's address for notices and documents under this agreement is 2 Synthetic Street, Johannesburg, 2001, and the Credit Provider's address is its registered office, 1 Test Road, Johannesburg, 2000. Either party may change its address by written notice to the other.

10.2 The Credit Provider will deliver documents to the Consumer by the method the Consumer chose under section 65 of the Act, except where the Act requires a particular method, as section 129 of the Act does for the notice in clause 6.2.

10.3 A notice under this agreement must be in writing. A notice the Consumer gives through the client portal or by email to the address the Credit Provider publishes for notices is in writing.

11 General

11.1 This agreement, the Quotation and the Repayment Schedule are the whole agreement between the parties about the Goods and the credit. The Credit Provider has delivered, or will deliver, a copy of this agreement to the Consumer free of charge, as section 93(2) of the Act requires.

11.2 This agreement may be changed only in writing signed by both parties, or as the Act permits, such as a change in a variable interest rate under clause 3.3.

11.3 Nothing in this agreement waives or limits any right the Act gives the Consumer or does anything section 90 of the Act prohibits. A provision that would do so is void to that extent, and the rest of this agreement remains in force.

11.4 This agreement is governed by the law of the Republic of South Africa. Proceedings under it will be brought in a court that has jurisdiction under the Act and the law; nothing in this agreement is a consent by the Consumer to the jurisdiction of any other court.

11.5 A relaxation or indulgence the Credit Provider allows the Consumer does not waive or limit the Credit Provider's rights under this agreement.

11.6 The Consumer may ask for this agreement in another official language the Consumer reads or understands, as section 63 of the Act provides.

11.7 The Credit Provider may cede its rights under this agreement and will tell the Consumer of the cession in writing; a cession does not affect any right or defence the Consumer has under this agreement or the Act. The Consumer may not cede the Consumer's rights or delegate the Consumer's obligations without the Credit Provider's prior written consent.

SIGNATURES

Consumer

_____ _____

TEST Sole Proprietor Date

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Credit provider

TEST Credit Provider (Pty) Ltd
Authorised countersignatory

Date

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